



EVL1 — Introduction to Evidence and Proof

Module 2 — Relevancy and Admissibility

Lesson 1: Relevancy

Student Lesson Notes

WHAT IS RELEVANCY?

Opening Scenario

A woman is on trial in Kampala for allegedly poisoning her husband. The prosecution wants to introduce the following pieces of information:

- The accused purchased rat poison from a shop in Wandegaya three days before her husband died.
- The accused had taken out a large life insurance policy on her husband six months earlier.
- The accused was seen arguing loudly with her husband the evening before his death.
- The accused once failed an examination in secondary school fifteen years ago.
- The accused's neighbour thinks she is generally a dishonest person.

Which of these should the court hear? Which ones actually help decide whether the accused poisoned her husband? This is the problem of relevancy — the first filtering question every piece of potential evidence must pass.

Definition of Relevancy

Relevancy: The logical connection between a fact and the matter in issue before the court. A fact is relevant if, by itself or in combination with other facts, it makes the existence of a fact in issue more probable or less probable than it would be without that fact.

The foundational provision is Section 5 of the Evidence Act Cap. 8 which provides that evidence may be given in any suit or proceeding of the existence or non-existence of every fact in issue and of such other facts as are declared relevant by the Act.

The Probative Value Test

The test for whether a fact is relevant is a logical one: does this fact, if true, make it more or less probable that something that is in issue actually occurred?

- If yes — the fact is relevant.
- If no — the fact is irrelevant and should not be admitted.

A fact has probative value if it proves or tends to prove something that matters to the case.

Applying the Test to the Opening Scenario

- Rat poison purchase — **RELEVANT:** makes it more probable the accused had access to poison, connecting to the method of killing. Falls under Section 8 (motive and preparation).
- Life insurance policy — **RELEVANT:** may show financial motive under Section 8 of the Evidence Act Cap. 8.
- Argument with deceased — **RELEVANT:** may show hostility and motive under Section 8.
- Failed school examination — **IRRELEVANT:** has no logical connection to whether she poisoned her husband.
- Neighbour's opinion — **IRRELEVANT:** general character evidence is generally inadmissible and does not make it more probable she poisoned her husband.

Relevancy is the FIRST gate that all evidence must pass. Before a court asks whether evidence is admissible, it must first ask whether that evidence is relevant. Evidence that is not relevant cannot be admitted regardless of how it was obtained or how reliable it might be.

FACTS IN ISSUE VS RELEVANT FACTS

Facts in Issue

Facts in Issue: The specific facts that a party must prove or disprove to succeed in their case. They arise directly from the substantive law that applies to the dispute.

In a murder case under the Penal Code Act Cap. 128, the facts in issue include: whether the accused caused the death, whether the death was unlawful, and whether the accused had the requisite intention. These must be proved by the prosecution beyond reasonable doubt.

In a civil contract dispute under the Contracts Act Cap. 284, the facts in issue include: that a valid contract existed, that the defendant breached it, and that the plaintiff suffered loss.

Relevant Facts

Relevant Facts: Facts that are not themselves in issue but which make the facts in issue more or less probable. They are admitted because of their logical connection to the facts in issue, not because they are themselves what must be proved.

Returning to the opening scenario: the purchase of rat poison is a relevant fact. It is not itself a fact in issue — buying rat poison is not a crime. But it makes it more probable that the accused had access to poison, which in turn makes it more probable that she could have used it to kill her husband.

Practical Illustration — Land Dispute in Mukono

A plaintiff claims ownership of a plot in Mukono District. The defendant claims he purchased it lawfully.

- Facts in issue: who owns the land; whether a valid sale occurred; whether the defendant has valid legal title.
- Relevant facts the parties might introduce: the certificate of title in the plaintiff's name (relevant — connects to ownership), a sale agreement signed by the original owner and defendant (relevant — shows the alleged purchase), photographs of the defendant's developments on the land (relevant — shows possession and investment).

None of the relevant facts by themselves settle who owns the land. But each makes one party's claim more or less probable.

Key Distinction

Facts in issue define the battlefield — they mark out what must be proved for either side to win. Relevant facts are the weapons brought onto that battlefield. A fact can only be relevant if there is a fact in issue to which it connects.

RELEVANCY UNDER THE EVIDENCE ACT CAP. 8

The Statutory Framework

The Evidence Act Cap. 8 specifically identifies categories of relevant facts across Sections 5 to 16. If a fact falls within one of these categories, it is relevant as a matter of law.

Section 5: Gateway provision — evidence may be given of facts in issue and of such other facts as are declared relevant by the Act.

Section 6: Facts forming part of the same transaction (*res gestae*) — facts so connected with a fact in issue as to form part of the same transaction are relevant. Example: words shouted during a robbery are part of the same transaction as the robbery.

Section 7: Facts which are the occasion, cause, or effect of facts in issue — the condition of the road surface in a road accident case may be the cause of the accident which is the fact in issue.

Section 8: Motive, preparation, and previous or subsequent conduct — the accused's purchase of rat poison before the poisoning shows preparation. The life insurance policy may show motive. Both are relevant under Section 8.

Section 9: Facts necessary to explain or introduce relevant facts — facts providing context needed to understand relevant facts.

Section 10: Things said or done by a conspirator in reference to a common design — relevant as against each conspirator.

Section 11: Residual relevancy — facts not otherwise relevant become relevant if they make the existence or non-existence of a fact in issue highly probable or improbable.

Section 15: Similar fact evidence — where there is a question whether an act was accidental or intentional, the fact that it formed part of a series of similar occurrences is relevant.

The Practical Workflow

When a party seeks to introduce evidence in a Ugandan court, the first question is whether the fact it tends to prove is relevant under Sections 5 to 16 of the Evidence Act Cap. 8. If relevant, the second question is whether the evidence offered to prove it is admissible — which we study in Lesson 2.

Makin v Attorney General of New South Wales [1894] AC 57, Privy Council — *persuasive authority in Uganda* — Similar fact evidence may be admissible where it shows a system or pattern connected to the matter in issue — but not merely to show the accused is a person of bad character. Consistent with Section 15 Evidence Act Cap. 8.

LESSON SUMMARY — KEY POINTS

- ✓ Relevancy is the logical connection between a fact and the matter in issue — a fact is relevant if it makes a fact in issue more or less probable
- ✓ The test for relevancy is the probative value test — does this fact make something that matters more or less probable?
- ✓ Section 5 of the Evidence Act Cap. 8 is the foundational relevancy provision
- ✓ Key categories of relevant facts: Sections 6 (same transaction), 7 (occasion/cause/effect), 8 (motive/preparation), 9 (explanatory facts), 15 (similar facts)
- ✓ Facts in issue are what must be proved to win the case — they arise from the applicable substantive law
- ✓ Relevant facts have a logical connection to facts in issue but are not themselves in issue
- ✓ Relevancy is the FIRST gate — evidence that is not relevant cannot be admitted at all
- ✓ *Makin v AG of New South Wales [1894] AC 57* — persuasive Commonwealth authority on similar fact evidence

SELF-TEST QUESTIONS

Attempt these before checking the platform practice quiz.

1. What is the probative value test for relevancy?
2. State the difference between facts in issue and relevant facts. Give one Ugandan example of each.
3. Under which section of the Evidence Act Cap. 8 would the accused's purchase of a weapon before a murder be classified as relevant?
4. Why is relevancy described as the first gate that all evidence must pass?
5. State the principle established in *Makin v AG of New South Wales* [1894] AC 57 and which section of the Evidence Act Cap. 8 it relates to.